

The Selectboard
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

MINUTES of the MEETING
Monday, November 21, 2022, at 7:00 PM

The Westhampton Selectboard scheduled a regular meeting to be held on Monday, November 21, 2022, at 7:00 PM at the Town Offices, 1 South Road, and via video-conference.¹

Call to Order

The meeting was called to order at 7 PM by Phil Dowling, Chair.

PRESENT: Phil Dowling, Maureen Dempsey, Scott Johndrow

ALSO PRESENT: Mr. Bill Jablonski (Highway Superintendent); Mr. Douglas Finn; Police Chief David White; Ms. Kelli Wainscott, Town of Chesterfield ACO;

PUBLIC HEARING - "Vicious / Dangerous Dog" Complaint

The Selectboard scheduled a public hearing on Monday, November 21, 2022, at 7 PM, to consider the complaint of Tad Weiss, 11 Tob Hill Road, that a dog owned by Susan Noble, 4 Perry Hill Road Extension, may be a nuisance or dangerous dog. The Selectboard will consider testimony and evidence presented thereto, in accordance with Section 157 of Chapter 140 of the General Laws, and the Bylaws of the Town of Westhampton.

Present: Police Chief David White; Ms. Kelli Wainscott, Town of Chesterfield ACO; Ms. Susan Noble;

The public hearing was opened at 7:00 PM.

Presentation / Findings / Comments

- Mr. David White described his investigation process (summarized on a letter).
- Ms. Susan Noble described her understanding of the incident, and noted that she would endeavor to keep the dog restrained at all times, or in the house.
- Mr. Dowling described his concern, noted previous incidents where he had personally witnessed the dog running free, and acting aggressively.
- Ms. Dempsey: You will keep the dog on the leash from here on in? Ms. Noble: Yes.
- Ms. Kelli Wainscott: I've reviewed the information, and the report from Ms. Noble, we understand that the dog is elderly; however, one incident might lead to another if the owner is not careful to prevent it. A second incident could require more drastic action – up to and including euthanization. I strongly recommend you keep the dog on the leash or restrained from here on in.

¹ Pursuant to Chapter 20 of the Acts of 2021, the meeting was conducted as a "hybrid" (in-person / remote) meeting. Members of the public could access the meeting in person, or connect via "zoom" teleconferencing via internet – Meeting ID#: 870 4390 0582.

- Mr. Dowling: I think it's important to reiterate the potential for consequences in the case of another incident.

The public hearing was closed at 7:08 PM. No further action was taken.

DEPARTMENT AND COMMITTEE UPDATES

Highway (Bill Jablonski)

Mr. Jablonski reported recent work completed by the Highway Department, including:

- Public Safety Complex paving completed.
- Landscapign around safety complex.
- Bollards placed and covered.
- Trucks ready for snow plowing, including sanding.
- A tree was removed on Chesterfield Road (after consulting with Tree Warden).
- Assisted with offloading of gear at the safety complex, including moving equipment from the Town Hall.
- The copy of the Third Party inspection of the transfer station is in, complete, and sent to MassDEP.

SMRP Grant

Mr. Jablonski presented the contract and other paperwork for the SMRP grant were presented for review and signature. He noted that the SMRP grant funds would likely be used to offset the increased tipping and trucking costs for disposal of hazardous waste (tires, etc.)

It was MOVED by Dowling, SECONDED by Johndrow

To approve and accept the SMRP grant of \$5950, and to authorize Dowling to Sign.

VOTED: 3, 0, 0. (7:12 PM)

Ms. Nancy Obertz (Southampton Rd) asked questions about increasing costs of electricity, and wondered if the Town would consider entering into a municipal energy aggregation agreement.

The plan: To join with other towns to purchase electricity in association with other towns to purchase power in bulk.

After some conversation, Mr. Dowling suggested that the Town could and should pursue it, and charged Mr. Finn to get more information about the process and the potential for town residents to save money on electric generation costs.

Health (Robby Armenti)

A written report was received from Ms. Armenti, as follows:

I will not be at the Selectboard Meeting, unfortunately, this week. We did not meet this month due to an online BoH Ethics Course. We will be meeting in December on the 18th. The only thing I have to report is that we, fortunately, have no cases of COVID reported this week. Have a good holiday! See you at the next meeting!

Report accepted as presented.

Public Safety Building (Phil Dowling)

Mr. Dowling noted that the project is nearing completion. Still remaining:

- HVAC and sprinkler systems are mostly done
- Next steps:
 - Lockers
 - Flooring for offices
 - Crew Room flooring painting

Sgt. Jeff Fish asked about the counters for certain spaces in the police offices. Mr. Dowling noted that the contractor responsible for the work had backed out; Mr. Dowling believes that the credit will pay for construction of the counters, which the Town can do on its own.

Mr. Dowling noted that there are still some large bills outstanding, including some change-order requests, and the costs for paving. The budget isn't expected to change radically, but a transfer of ARPA funds will be necessary in the near future.

There was some discussion about the cable internet service and telephone systems proposed for the meeting.

Mr. Dowling noted that Goodless Electric advised that there could be some interference due to the metal structure of the building. Chief White noted that the problem had likely been addressed already.

MVP (Teri Anderson)

A brief note from Ms. Anderson noted that the consultants continue to work on the draft plan.

OTHER NEW BUSINESS (may include items not reasonably anticipated at time of posting)

Ms. Dempsey noted the receipt of correspondence regarding the negotiations for the teaching contract, and the letters requesting that a fair contract be negotiated.

There was some discussion relative to the past contract negotiations.

Mr. Johndrow was limited in that he could report, but said that the committee is working to negotiate a fair and fiscally responsible contract.

Mr. Dowling noted a request from Unibank for a copy of the 2021 Audit. There was some discussion as to the need for it, and the capacity of the Town to provide necessary information. Mr. Finn was directed to respond to Unibank's inquiry, and determine if an FY2021 audit will be required.

Mr. Johndrow noted that he had been selected as Selectboard representative for the HRSD negotiations.

ADMINISTRATIVE

Review Correspondence

Correspondence was reviewed.

Review of Payroll and A/P Warrants: W23-9, WP23-9

There was some brief discussion about a 'glitch' in the submission of payroll.

After review, it was MOVED by Dowling, SECONDED by Johndrow

To approve payroll warrant WP23-11.

VOTED: 3, 0, 0. (7:40 PM)

After review, it was MOVED by Dowling, SECONDED by Johndrow

To approve A/P Warrant W23-11.

VOTED: 3, 0, 0 (7:40 PM)

Review / Approve Minutes

The minutes of November 7 were reviewed. After review, it was MOVED by Dowling, SECONDED by Johndrow

To approve the minutes of November 7, 2022, as presented.

VOTED: 3, 0, 0. (7:41 PM)

Next Meeting Date

Mr Dowling noted that the date for the next meeting would be Monday, December 5, 2022, at 7 PM.

Adjourn

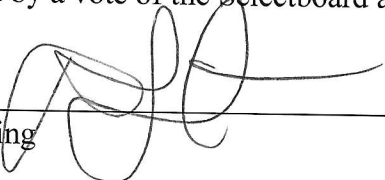
It was MOVED by Dowling, SECONDED by Johndrow

To Adjourn.

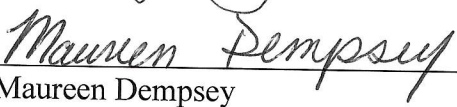
VOTED: 3, 0, 0. (7:45 PM)

Respectfully submitted,
Douglas C. Finn

Approved by a vote of the Selectboard at a regular meeting, held on 12/05, 2022.



Phil Dowling



Maureen Dempsey



Scott Johndrow